

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 1, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WILLIAMS v. LYFT, et al.
Case No. cu24-03741**

Motion by Defendants LERAN BAI and BAI SHI for Summary Judgment

TENTATIVE RULING

A defendant moving for summary judgment must present evidence sufficient to negate a necessary element of the cause of action, or establish an affirmative defense to it. C.C.P. §437c(p)(2).

The elements of a cause of action for negligence (motor vehicle or otherwise) against a vehicle owner or its driver include duty, breach, causation and damages. Yamaha Motor Corp. v. Paseman (1990) 219 Cal.App.3d 958, 965 [applying basic negligence law to a duty to maintain vehicle]; vehicle owners under Vehicle Code §17150 [“Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner”].

The duties of drivers at a two-way stop controlled intersection are prescribed by Vehicle Code §21802, and require a driver entering from a stop sign entrance to the intersection to yield to vehicles approaching from a direction not controlled by a stop sign. But this statute also imposes on those traveling in the through

direction without a stop sign a duty to watch, and try to avoid vehicles, even though they have the right of way. Vehicle Code §21802(b) ["A driver having yielded as prescribed in subdivision (a) may proceed to enter the intersection, and the drivers of all other approaching vehicles shall yield the right-of-way to the vehicle entering or crossing the intersection"].

As one court explained:

[I]t is the duty of every person to use ordinary care at all times to avoid placing himself or others in danger, and to exercise ordinary care at all times to avoid a collision. Again, . . . it is the driver's duty to be vigilant at all times, keeping a lookout for traffic, and to keep his vehicle under such control that he can stop as quickly as would be required by eventualities that would be anticipated by an ordinarily prudent driver. Safirstein v. Nunes (1966) 241 Cal.App.2d 416, 421.

Sometimes an accident is caused in part by the actions of both drivers. Triers of fact can assess the relative fault of both, and reduce the recovery of an injured party based on the relative fault determined. CACI 406. It is only when the fault of one is so unforeseeable that it might rise to the level of a superseding intervening cause, that it could constitute a complete defense to the initial tortfeasor's liability for the occurrence of the accident. Perez v. VAS S.p.A. (2010) 188 Cal.App.4th 658, 685 [to be a superseding intervening cause, the other's negligence must produce "harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible"]. Negligent driving by another is rarely if ever sufficiently unforeseeable to constitute a superseding intervening cause.

Thus, evidence of fault on the part of the Lyft driver (in whose vehicle Plaintiff was a passenger) does not negate a necessary element of a negligence-based cause of action against driver Defendant LERAN BAI, nor vehicle owner BAI SHI.

The court notes that LERAN's declaration contains the statement "I was not driving above the speed limit". However, this does not negate any possibility of negligence based on vehicle speed under Vehicle Code §22350, which states:

No person shall drive a vehicle upon a highway at a speed greater than is reasonable or prudent having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, and in no event at a speed which endangers the safety of persons or property.

No evidence was provided as to weather, visibility, traffic, or other conditions which might have made travelling at the posted rate of maximum speed unsafe

for that situation (and the declaration also failed to provide foundational evidence as to the rate of the posted speed limit or what rate of speed LERAN was traveling in the moments before the subject accident occurred).

Furthermore, speed is only one possible basis for breach of a driver's duty. For example, it does not negate the possibility of driver inattentiveness on the part of LERAN, who presented no evidence as to attentiveness.

Since this motion failed to negate a necessary element of either of the causes of action alleged in the complaint, nor to establish a complete affirmative defense to them, the court denies the summary judgment motion filed by LERAN and SHI BAI.

E. ROE v. ALTERNATIVE FAMILY SERVICES, et al.
Case No. CU24-08890

Petition for Approval of Compromise of Claim or Action or Disposition of
Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Minor's Compromise is approved in part, and denied in part. All components of the proposal are acceptable and approved with the exception of the request for Plaintiff attorney fees.

Plaintiff counsel has requested an allocation of 40% of the gross settlement amount for its fees in this matter. This is not justified by the work required by the case and far exceeds the customary fee of 25% that is almost always apportioned for legal representation of minors. Therefore, the court denies this portion of the minors compromise request. It may be modified to reflect an allocation for plaintiff attorney fees of not more than 28%, at which time the court will approve the document in its entirety.

ANATOLIY LEBEDINSKIY v. PATRICK JOHN BOAL and JUAN MORALES PEREZ
Case No. CU25-00920

BOAL's Motion for Leave to File Cross-Complaint

TENTATIVE RULING

Defendant PATRICK JOHN BOAL ("BOAL") moves for leave to file a cross-complaint against Plaintiff ANATOLIY LEBEDINSKIY.

Code of Civil Procedure section 428.10, subdivision (a) permits a party against whom a cause of action has been asserted in a complaint to file a cross-complaint against the initially complaining parties. Code of Civil Procedure section 428.50 allows a cross-complaint against an initially complaining party to be filed after the cross-complaining party has answered the initial complaint only if the cross-complaining party obtains leave of court. BOAL has answered Plaintiff's complaint against him and thus needs leave of court to file a cross-complaint against Plaintiff.

Where a proposed cross-complaint against an initial party is "compulsory," meaning that it is asserted against the initial party and arises out of the same series of transactions or occurrences as the initial party's complaint and therefore must be filed lest the would-be cross-complainant lose his right to assert his claims, leave to file the cross-complaint "shall" be granted "upon such terms as may be just to the parties" if the would-be cross-complainant has "acted in good faith." (Code Civ. Proc., §§ 426.10, 426.30, 426.50.)

A "permissive" cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party's complaint, and is given leave for filing only in the court's discretion. (Code Civ. Proc., § 428.50, subd. (c) ["interests of justice" standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

BOAL's proposed cross-complaint relates to the same transactions or occurrences as Plaintiff's complaint. BOAL alleges claims for indemnity and contribution related to the same motor vehicle collision underlying Plaintiff's complaint. Challenges to the legal sufficiency of a proposed cross-complaint's claims are matters for demurrer, not the motion for leave, which shall be granted absent bad faith. Plaintiff does not demonstrate bad faith on BOAL's part in seeking leave.

BOAL's motion for leave to file a cross-complaint is granted.

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